

WELLS FARGO BANK, N.A. v ELWESS

24CF14402

PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

Plaintiff Wells Fargo Bank, N.A. ("Plaintiff") sued Defendant Kellie El Wess ("Defendant") for the collection of a debt. Thereafter, Defendant filed an Answer. Now before the Court is Plaintiff's motion to deem admitted the matters specified in the Plaintiff's Request for Admission ("RFA").

On or about June 7, 2024, Plaintiff served its first set of discovery: Request for Admissions - Set One ("RFA.") On or about July 16, 2024, Plaintiff's counsel attempted a meet and confer by sending the letter to Defendant regarding the outstanding discovery and offering additional time to respond. (*Id.* ¶ 5, Ex. 2.) As of the Plaintiff's motion, Defendant has not responded to the letter or provided any responses to the RFA. Defendant has also not filed an opposition to the Plaintiff's motion.

Pursuant to Code Civ. Proc. section 2033.280:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).)

Defendant has not served a response and has not provided any evidence to the court that the failure is a result of mistake, inadvertence, or excusable neglect.

Accordingly, Plaintiff's motion is **GRANTED**.

The Clerk shall provide notice of the Ruling forthwith. The Court intends to sign the Order submitted by Plaintiff.

DVORAK v HOPE PUBLICATIONS, LLC

24CV47332

DEFENDANT'S MOTION FOR ATTORNEY'S FEES

On April 22, 2024, Michael Dvorak ("Plaintiff") filed a complaint against Hope Publications LLC, dba Calaveras Enterprise ("Defendant"), alleging causes of action for: 1) defamation, 2) libel, 3) false light, 4) defamation "per se", 5) defamation "per quod", 6) intentional infliction of emotional distress, 7) negligent infliction of emotional distress, and 8) damages.

On August 16, 2024, the Court granted Defendant's special motion to strike. Now before the Court is Defendant's motion for attorney's fees and costs.

I. Background

Plaintiff is a member of the Board of Directors of the Calaveras County Resource Conservation District ("Calaveras RCD"). He was appointed to the seven-member board in January 2022 by the County Board of Supervisors.

Defendant is a publishing company that operates a locally owned newspaper called the Calaveras Enterprise ("Newspaper"). The Newspaper is printed once a week but is also available daily online. Plaintiff alleged that in the October 11, 2023 edition, the Newspaper published an "erroneous felony booking log" stating that Plaintiff had been booked for vandalism.

The Court granted Defendant's motion to strike, finding that the information Defendant published in the Newspaper was privileged as an accurate report of the Sheriff's communications concerning a public official proceeding.

II. Legal Standard and Discussion

Pursuant to Code of Civil Procedure section 425.16(c)(1), "a prevailing defendant on a special motion to strike shall be entitled to recover his or her attorney's fees and costs." (See *also Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1141-1142.) Parties may seek attorney fees and costs in connection with a special motion to strike (1) in the moving papers, (2) in a subsequently filed motion, or (3) as part of a cost memorandum. (*Melbostad v. Fisher* (2008) 165 Cal.App.4th 987, 992.)

A prevailing party may only recover for work related to the motion, not the entire suit. (*Lafayette Morehouse, Inc. v. Chronicle Publishing Co.* (1995) 39 Cal.App.4th 1379, 1383.) However, compensable fees include fees incurred in moving for attorney's fees